

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

September 14, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Navarrete v. Lyft, Inc. 2026-01564155	Defendant Lyft Inc.'s Demurrer is OVERRULED and the Motion to Strike is DENIED. Lyft demurs to the negligence cause of action on the grounds it fails to state sufficient facts to constitute a cause of action against Lyft. Alternatively, Lyft moves to strike allegations in the Complaint related to claims Lyft is liable to Plaintiff pursuant to Public Utilities Code section 5354. Demurrer A demurrer must dispose of an entire cause of action to be sustained. (<i>Thompson v. Spitzer</i> (2023) 90 Cal.App.5th 436, 451-452.) "Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability." (<i>Id.</i> at 452.) Lyft attacks the negligence cause of action on the grounds that no vicarious liability exists under Public Utilities Code section 5354. However, this is not the only basis for liability alleged in the Complaint. The Complaint also alleges Lyft negligently hired, employed, retained, supervised, and managed Defendant Saleh. (Complaint, ¶ 17.) Lyft does not address this theory of liability in the demurrer or the elements to state a cause of action for negligence. Therefore, the demurrer to negligence cause of action is OVERRULED. Motion to Strike Lyft moves to strike allegations that it is vicariously liable for the actions of Defendant Saleh pursuant to Public Utilities Code section 5354 and common carrier allegations. A court may "[s]trike out any irrelevant, false, or improper matter inserted in any pleading." C.C.P. § 436(a). Lyft is a licensed Transportation Network Company ("TNC") pursuant to Pub. Util. Code § 5431, subd. (c)). A TNC is defined as "a corporation...operating in California that provides prearranged transportation services for compensation using an online-enabled application or platform to connect passengers with drivers using a personal vehicle." (Pub. Util. Code § 5431, subd. (c); see also, <i>City and County of San Francisco v. Uber Techs., Inc.</i> (2019) 36 Cal.App.5th 66, 71 [describing Lyft as a TNC].) As a TNC, Lyft is bound by rules, policies, and procedures set forth by the California Public

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		Utilities Commission and Public Utilities Code, including for example, extensive insurance requirements (See Pub. Util. Code §§ 5432-5435), and rules relating to passenger information disclosure (Pub. Util. Code § 5437). Pub. Util. Code, § 5354 states: "In construing and enforcing the provisions of this chapter relating to the prescribed privileges and obligations of the holder of a permit or certificate issued hereunder, the act, omission, or failure of any officer, agent, or employee, or person offering to afford the authorized service with the approval or consent of the permit or certificate holder, is the act, omission, or failure of the permit or certificate holder." (Pub. Util. Code, § 5354 (emphasis added). This language would suggest that Lyft is liable for the acts/omissions of any "person offering to afford the authorized service with the approval or consent of the permit or certificate holder", which could include Lyft drivers. Lyft argues Section 5354 was not designed to create vicarious liability, but designed to give the California Public Utilities Commission tools to enforce permit holder obligations. Section 5354's limiting phrase "[i]n construing and enforcing the provisions of this chapter" – expressly limits Section 5354 applicability to the CPUC's enforcement of permit holder obligations under Chapter 8 of the Public Utilities Code which governs Charter-Party Carriers. The statute does not extend to acts or conduct outside of this regulatory chapter, including common-law negligence claims. Lyft further argues that neither the TNC Regulations nor any CPUC decision create any statutory basis for vicarious liability. The absence of such decisions, however, does not preclude the reasonable interpretation of Section 5354. If the plain, commonsense meaning of a statute's words is unambiguous, then plain meaning controls. (<i>City of Los Angeles v. City of Los Angeles Employee Relations Bd.</i> (2016) 7 Cal.App.5th 150, 163.) Here, the plain language of Section 5354 states "the act, omission, or failure of any....person offering to afford the authorized service with the approval or consent of the permit or certificate holder [the Lyft driver] is the act, omission, or failure of the permit or certificate holder [Lyft]." (emphasis added.) Thus, it's not obvious based on the statutory language that the negligence or the wrongful acts of a driver could not legally be imputed to the TNC.

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		Moreover, there is no language in Section 5354 that precludes negligence claims. In fact, Chapter 8 contemplates acts of negligence by requiring a TNC and any participating driver to maintain transportation network company insurance. (Pub. Util. Code § 5433, subd. (a).) Section 5433 states: "This article does not limit the liability of a transportation network company arising out of an automobile accident involving a participating driver in any action for damages against a transportation network company for an amount above the required insurance coverage." Thus, acts of negligence arising from automobile accidents are contemplated under Chapter 8. Therefore, the Court finds Section 5354 could provide a basis for Lyft's liability for the acts of defendant Saleh. Lyft also contends that there is no private right of action for violating Section 5354. Plaintiff, however, is not suing Lyft for violating Section 5354. Rather the complaint alleges a legal basis for holding Lyft liable within the existing negligence claim. Section 5354 establishes the scope of liability rather than creating an independent right to sue. In this case, Plaintiff has alleged a claim for negligence against Lyft. Lyft next argues that Plaintiff has no standing to sue because plaintiff was not a passenger. "The common carrier designation does not extend to cases where the relation of carrier and passenger does not exist." (<i>Simon v. Walt Disney World Co.</i> (2004) 114 Cal.App.4th 1162, 1170.) But the text of Section 5354 does not state it is limited simply to passengers. Moreover, the heightened duty of care based on a carrier-passenger relationship applies only where such a relationship exists at the time of the alleged harm. (See <i>Jane Doe No. 1 v. Uber Technologies, Inc.</i> (2022) 79 Cal.App.5th 410, 420-421.) For claims against the common carrier by non-passengers, ordinary negligence principles would apply. (See <i>Squaw Valley Ski Corp. v. Superior Court</i> (1992) 2 Cal.App.4th 1499, 1506-1507.) Based on the above, Lyft has not established that the language it seeks to strike is irrelevant, false or improper. Therefore, the motion to strike is DENIED. Defendant Lyft shall file an answer within 10 days. The case management conference is continued to October 12, 2026 at 9:00 a.m. Lyft shall give notice of this ruling.

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51.	Sanchez v. Perez 2022-01275016	Plaintiff Rigoberto Sanchez's motion to enforce the judgment is DENIED without prejudice. There is no proof of service on the motion. Further, plaintiff already has a money judgment. Plaintiff is encouraged to consult with the court's self-help desk concerning enforcement of money judgments, and proofs of service. The clerk shall give notice.
52.	Bernadette Jean McCann as trustee for The Bernadette Jean McCann under instrument dated November 18, 2019 v. Rubicon Builders & Development, Inc. 2025-01488820	Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael's Motion to Compel Arbitration is GRANTED. (Code Civ. Proc. §1281.2.) Plaintiff Bernardette Jean McCain individually and as trustee for The Bernardette Jean McCann 2019 Trust for the Benefit of Bernardette Jean McCann under instrument dated November 18, 2019 shall submit her claims against Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael to binding arbitration pursuant to the terms of the agreement to arbitrate contained in the Home Improvement Contract dated August 13, 2024 (see ROA 19, Ex. A) and subject to the modifications to the agreement provided in this Order. The remainder of this Action is STAYED upon the filing by plaintiff of proofs of service on Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE. Any stay is without prejudice to Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE moving to compel Plaintiff to arbitrate her claims. Any stay is also subject to further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. <u>General Legal Standard</u> A party seeking to compel arbitration must demonstrate the existence of a written agreement to arbitrate the controversy by preponderance of the evidence, and the party resisting arbitration bears the burden of proving any defense to enforcement. (Code Civ. Proc., § 1281.2; <i>Engalla v.</i>

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		<i>Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (<i>Engalla</i>); see <i>Hyundai Amco America, Inc. v. S3H, Inc.</i> (2014) 232 Cal.App.4th 572, 577 [“[plaintiff’s] filing of a lawsuit rather than commencing arbitration proceedings as required by the agreement affirmatively establishes [plaintiff’s] refusal to arbitrate”].) The defendant bears the burden of proving the existence of an agreement to arbitrate the controversy. The “court must employ a three-step burden shifting process” to determine whether the defendant has met this burden. (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 (<i>Garcia</i>); <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832 (<i>Ramirez</i>); <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 (<i>Iyere</i>).) At the first step, the defendant must present prima facie evidence of a written arbitration agreement. The defendant can meet its first-step burden by simply providing a copy of the alleged agreement, without following the normal procedures of document authentication. (<i>Garcia</i>, at p. 51; <i>Ramirez</i>, at pp. 830-831; <i>Iyere</i>, at p. 755.) If this initial burden is met, the burden shifts to the plaintiff to present evidence of a factual dispute as to the agreement’s existence. (<i>Garcia</i>, at pp. 51-52; <i>Ramirez</i>, at pp. 832-833; <i>Iyere</i>, at p. 755.) If the plaintiff meets that burden, the burden shifts back to the defendant to prove the existence of the arbitration agreement by preponderance of the evidence with admissible evidence. (<i>Garcia</i>, at pp. 51, 53; <i>Iyere</i>, at p. 755.) Moving Defendants have established the existence of an agreement to arbitrate between Plaintiff and Defendant Rubicon Builders & Development, Inc. (See ROA 19, Ex. A.) Specifically, the Arbitration Agreement provides as follows: “ARBITRATION OF DISPUTES: ANY CONTROVERSY OR CLAIM ARISING OUT OF OR RELATED TO THIS CONTRACT, OR THE BREACH THEREOF, SHALL BE SETTLED BY BINDING ARBITRATION BEFORE THE AMERICAN ARBITRATION ASSOCIATION IN ACCORDANCE WITH ITS CONSTRUCTION INDUSTRY ARBITRATION RULES, AND JUDGMENT UPON THE AWARD RENDERED BY THE ARBITRATOR(S) MAY BE ENTERED IN ANY COURT HAVING JURISDICTION THEREOF. DISCOVERY IN ANY ARBITRATION SHALL BE LIMITED TO WHAT IS ALLOWED BY THE APPLICABLE ARBITRATION RULES AND THE ARBITRATOR’S POWERS ARE EXPRESSLY LIMITED TO THE APPLIUCABLE RULES; WHERE THE RULES PROVIDE THAT DISCOVERY OR DEPOSITION MAY BE ALLOWED IN EXTRAORDINARY CASES, IN THE INTERESTS OF JUDICIAL

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		ECONOMY, THE ARBITRATOR MAY NOT ORDER DISCOVERY BROADER THAN THAT ALLOWED IN A LIMITED CIVIL CASE UNDER CODE OF CIVIL PROCEDURE SECTION 94. ANY CLAIM FILED IN SMALL CLAIMS COURT SHALL NOT BE DEEMED TO BE A WAIVER OF THE RIGHT TO ARBITRATE, AND IF A COUNTER CLAIM IN EXCESS OF THE JURISDICTION OF THE SMALL CLAIMS COURT IS FILED IN THE MUNICIPAL OR SUPERIOR COURT, THEN THE PARTY FILING IN SMALL CLAIMS COURT MAY DEMAND ARBITRATION PURSUANT TO THIS PARAGRAPH. NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE "ARBITRATION OF DISPUTES" PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE "ARBITRATION OF DISPUTES" PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE BUSINESS AND PROFESSIONS CODE OR OTHER APPLICABLE LAWS. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY." Thus, the burden shifts to Plaintiff to present evidence of a factual dispute as to the existence of the arbitration agreement. (<i>Garcia, supra</i>, 102 Cal.App.5th at pp. 51-52.) Plaintiff fails to meet this burden. Plaintiff does not deny that she entered into the contract containing the arbitration agreement, nor does she otherwise dispute its existence. As such the three-step burden shifting analysis stops here, and the court must find that defendant has met its burden to demonstrate the existence of the arbitration agreement. (<i>Ramirez, supra</i>, 102 Cal.App.5th at p. 837.) Moving Defendants argue the question of arbitrability is a question delegated to the arbitrator. "There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.' [Citations.] The 'clear and unmistakable' test reflects a 'heightened standard of proof' that reverses the

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		typical presumption in favor of the arbitration of disputes.” (<i>Aanderud v. Superior Court</i> (2017) 13 Cal.App.5th 880, 892.) Here, the “Any controversy or claim arising out of or related to this Contract” language is not sufficient to constitute a clear and unmistakable intent to delegate questions of arbitrability to the arbitrator. (See, e.g., <i>Beco v. Fast Auto Loans, Inc.</i> (2022) 86 Cal.App.5th 292, 303 [“any such controversy or claim’ could very easily be read to mean a specific substantive dispute or claim, not the issue of who decides whether the entire agreement is enforceable or unconscionable”].) Thus, the Court, not the arbitrator, is to decide the threshold issue of arbitrability of the claims Moving Defendants seek to be arbitrated. Here, each Cause of Action alleged by Plaintiff against Moving Defendants arises out of or is related to the contract containing the arbitration agreement because each cause of action is premised upon allegations concerning the performance of the construction services contemplated by the contract. <u>Non-Signatory Standing to Enforce Arbitration Agreement</u> Plaintiff challenges Defendants Chanael and Natan’s standing to enforce the arbitration agreement as non-signatories. Moving Defendants have shown that Defendants Chanael and Natan may enforce the arbitration agreement as non-signatories. A nonsignatory defendant may “compel a signatory plaintiff to arbitrate where there is a connection between the claims alleged against the nonsignatory and its agency relationship with a signatory” defendant. (<i>Cohen v. TNP 2008 Participating Notes Program, LLC</i> (2019) 31 Cal.App.5th 840, 863.) “[A]gents of a signatory can compel the other signatory to arbitrate so long as (1) the wrongful acts of the agents for which they are sued relate to their behavior as agents or in their capacities as agents [citation] and (2) the claims against the agents arise out of or relate to the contract containing the arbitration clause [citation] (consistent with the language of the arbitration clause.” (<i>Amisil Holdings Ltd. v. Clarium Capital Mgmt. LLC</i> (N.D.Cal. 2007) 622 F.Supp.2d 825, 832; see also <i>Garcia v. Pexco, LLC</i> (2017) 11 Cal.App.5th 782, 788 [“The [agency] exception applies, and a defendant may enforce the arbitration agreement, ‘when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement’ ”]; <i>Dryer v. Los Angeles Rams</i> (1985) 40 Cal.3d 406, 418 [nonsignatory alleged to be an agent of a signatory is entitled to arbitrate

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		claims brought against it by another signatory].) Here, the allegations against Chanael and Natan involve their conduct within the scope of an agency relationship with Defendant Rubicon. (See, e.g. FAC ¶¶ 3-4, 8-9, 13, 16-17, 48-49, 58, 65, 68, and 102.) <u>Risk of Conflicting Judgments</u> Plaintiff argues that the motion should be denied pursuant to Code Civ. Proc. §1281.2, subd. (c) because Plaintiff alleges causes of action against non-signatory Defendants Stephen Miller and Agape Civil Engineering. Plaintiff reasons that permitting the claims against Moving Defendants to be separately litigated in arbitration presents a risk of conflicting judgments. However, even if the Court finds there is a risk of conflicting judgments if the arbitration of Plaintiff's claims against Moving Defendants is compelled, Code Civ. Proc. §1281.2, subd. (c) provides the court with discretion in how to minimize that risk. (See (<i>Rowe v. Exline</i> (2007) 153 Cal.App.4th 1276, 1283 [court's discretion].) Namely, Code Civ. Proc, §1281.2, subd. (d) provides in relevant part: "If the court determines that a party to the arbitration is also a party to litigation in a pending court action ... with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action ... (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action ... pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding." Here, the Court finds that a stay of proceedings with respect to Plaintiff's claims against Defendants Miller and Agape pending the arbitration of claims against Moving Defendants and Moving Defendants' mechanics lien claims in the related action is the most expeditious route to proceed. Plaintiff has not made a persuasive argument to deny the motion on the ground of Code Civ. Proc. §1281.2, subd. (c). <u>Waiver</u> Plaintiff also argues that the motion should be denied because Moving Defendants have waived the right to arbitrate these claims. Plaintiff contends that Defendants have taken action inconsistent with the intent to arbitrate by (1) filing a lawsuit [the related case] seeking to enforce a mechanic's lien; and (2) propounding form interrogatories in this matter.

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		Moving Defendants respond by arguing that the filing of the related case is not inconsistent with the intent to arbitrate because the Complaint in that matter contained an express allegation preserving the right to arbitrate and Moving Defendants promptly sought to compel arbitration of the arbitrable claims in that lawsuit after service of the summons and complaint. Code Civ. Proc. §1281.5 supports Moving Defendants' position. Code Civ. Proc. §1281.5 provides that "[a]ny person who proceeds to record and enforce a claim of lien by commencement of an action [to enforce a mechanic's lien] does not thereby waive any right of arbitration the person may have pursuant to a written agreement to arbitrate, if, in filing an action to enforce the claim of lien, the claimant ... [i]ncludes an allegation in the complaint that the claimant does not intend to waive any right of arbitration, and intends to move the court within 30 days after service of the summons and complaint, for an order to stay further proceedings in the action..." Plaintiff has not shown that Moving Defendants failed to comply with Code Civ. Proc. §1281.5, and such this is not a ground to find waiver. With respect to the argument that Moving Defendants have propounded discovery, Plaintiff fails to provide any evidence that Moving Defendants have propounded any affirmative discovery. Moreover, Moving Defendants contend that the only discovery they have served in this proceeding is objections to written discovery served by Plaintiff. In sum, Plaintiff fails to make a sufficient showing to establish waiver of Moving Defendants' right to invoke the arbitration agreement. <u>Unconscionability</u> Plaintiff argues that the Arbitration Agreement should not be enforced because it is an unconscionable contract of adhesion that impermissibly limits Plaintiff's right to take discovery. As the party resisting enforcement, Plaintiff bears the burden of establishing this defense. (<i>Engalla, supra</i>, 15 Cal.4th at p. 972.) Plaintiff has failed to meet this burden. Unconscionability " "refers to "absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." ' [Citation.] As that formulation implicitly recognizes, the doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to

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		unequal bargaining power, the latter on overly harsh or one-sided results." ' ' " (<i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243 (<i>Baltazar</i>).) "Both procedural and substantive unconscionability must be present before an arbitration provision is rendered unenforceable on unconscionability grounds, but ' ' 'they need not be present in the same degree.' ' ' [Citation.] Courts invoke a sliding scale in which ' "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." ' [Citation.]" (<i>De Leon v. Pinnacle Property Management Services, LLC</i> (2021) 72 Cal.App.5th 476, 485-486; <i>Baltazar, supra</i>, 62 Cal.4th at pp. 1243-1244.) <u>Procedural Unconscionability</u> "Procedural unconscionability 'addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.' [Citation.] This element is generally established by showing the agreement is a contract of adhesion, i.e., a 'standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' [Citation.] Adhesion contracts are subject to scrutiny because they are 'not the result of freedom or equality of bargaining.' [Citation.]" (<i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 492-493.) Here, Plaintiff has presented no evidence that Plaintiff was coerced or compelled to hire these defendants to perform the work that is the subject of this dispute—that is, there is no evidence of unequal bargaining power. Assuming, without deciding, that Plaintiff has shown some procedural unconscionability related to the nature of the form contract, any such unconscionability is of a low degree. (See <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1244 ["Ordinary contracts of adhesion, although they are indispensable facts of modern life that are generally enforced [citation], contain a degree of procedural unconscionability even without any notable surprises."]) <u>Substantive Unconscionability</u> "Substantive unconscionability looks beyond the circumstances of contract formation and considers 'the fairness of an agreement's actual terms' [citation], focusing on whether the contract ... create[s] unfair or one-sided results

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		[citation]. Substantively unconscionable contractual clauses 'reallocate risks in an objectively unreasonable or unexpected manner.' [Citations.]" (<i>Ramirez v. Charter Communications, Inc., supra</i>, 16 Cal.5th at p. 493.) Unconscionability must be assessed on circumstances known at the time the agreement was made, as opposed to subsequent developments (e.g., a particular plaintiff's litigation needs in relation to her claim). (<i>Id.</i> at pp. 505-506.) Here, Plaintiff contends that the Arbitration Agreement is substantively unconscionable because it severely restricts the availability of discovery. Specifically, the Agreement provides: "DISCOVERY IN ANY ARBITRATION SHALL BE LIMITED TO WHAT IS ALLOWED BY THE APPLICABLE ARBITRATION RULES AND THE ARBITRATOR'S POWERS ARE EXPRESSLY LIMITED TO THE APPLICABLE RULES; WHERE THE RULES PROVIDE THAT DISCOVERY OR DEPOSITION MAY BE ALLOWED IN EXTRAORDINARY CASES, IN THE INTERESTS OF JUDICIAL ECONOMY, THE ARBITRATOR MAY NOT ORDER DISCOVERY BROADER THAN THAT ALLOWED IN A LIMITED CIVIL CASE UNDER CODE OF CIVIL PROCEDURE SECTION 94." The Court agrees that this provision is substantively unconscionable. Arbitration agreements that severely limit the opportunity to take meaningful discovery have been found to be unconscionable. (See, e.g., <i>Beco, supra</i>. 85 Cal.App.5th at 308-312; <i>Daugherty v. Roseville Heritage Partners</i> (2020) 47 Cal.App.5th 93, 104-107.) However, the Court has the discretion to sever an unconscionable portion of a contract and enforce the remainder of the contract where it finds (i) the unconscionable provision is collateral to the contract's main purpose; (2) the unconscionable effect can be cured by severing the provision; and (3) enforcement of the remaining agreement is in the interests of justice. (<i>Ramirez v. Charter Communications, Inc., supra</i>, 16 Cal.5th at 517.) Here, the challenged discovery provision can be severed to cure the substantive unconscionability without rewriting the underlying contract. Accordingly, the foregoing Order compelling Plaintiff to submit her claims to binding arbitration is modified to permit discovery consistent with Code Civ. Proc. §§ 1282, et seq. Moving Defendants shall provide notice of this ruling.

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53.	Rubicon Builders & Development, Inc. v. McCann 2025-0150778	Plaintiff Rubicon Builders & Development, Inc.'s unopposed motion to compel arbitration and stay proceedings is GRANTED. (Code Civ. Proc. §§ 1281.2 and 1281.4.) In light of the Court's ruling on Rubicon's motion to compel arbitration in the related matter McCann v. Rubicon Builders & Development, Inc. (OCSC Case No. 30-2025-01488820), Plaintiff and Defendant in this matter are hereby ORDERED to submit the claims alleged here to binding arbitration consistent with the Construction Services Agreement attached to Plaintiff's motion as Exhibit A, as modified in the ruling compelling arbitration in the related case. The Court excepts from this order to arbitrate Plaintiff's claims concerning a mechanic's lien. As it relates to Plaintiff's claims concerning the mechanic's lien, those claims are STAYED pending the conclusion of the arbitration, or further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. Plaintiff shall provide notice of this ruling.
54.	Cacak v. HB Healthcare Associates LLC 2025-01454745	Defendants HB Healthcare Associates LLC (HB Healthcare) and Sandpiper Senior Living LLC's (Sandpiper) (together, the Sea Cliff defendants) motion to compel arbitration is DENIED. (See Code Civ. Proc., § 1281.2.) <u>Subject arbitration agreements.</u> This motion has been brought pursuant to two separate arbitration agreements: (1) HB Healthcare's arbitration agreement with plaintiff Harold L. Cacak (plaintiff) dated 6/15/23, which the parties refer to as the "Sea Cliff SNF Agreement" (Apolinar Decl. at Ex. A); and (2) Sandpiper's arbitration agreement with plaintiff dated 8/1/23, which the parties refer to as the "Sea Cliff RCFE Agreement" (Clark Decl. at Ex. B). Although the Sea Cliff defendants have brought this motion together, each defendant seeks to compel arbitration pursuant to its own arbitration agreement with plaintiff. <u>The California Arbitration Act applies.</u> Defendants have brought this motion pursuant to both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA). (See Mtn.

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		P&As at p. 3.) The CAA governs this motion as nothing in the moving papers or the subject agreements show the FAA applies. (See <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 346 [FAA applies to arbitration clauses in contracts involving interstate commerce or where the arbitration clause provides the FAA shall apply]; Apolinar Decl., in passim; Clark Decl., in passim; Munoz Decl., in passim; see also Apolinar Decl. at Ex. A, art. 1.) <u>Existence of arbitration agreements.</u> Both defendants have met their burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (<i>Engalla</i>) [burden]; <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-833 (<i>Ramirez</i>) [three-step burden shifting process]; <i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 (<i>Garcia</i>) [same]; <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 [same].) HB Healthcare has met its first-step, prima facie burden to demonstrate the existence of an agreement to arbitrate the controversy by producing a copy of the Sea Cliff SNF Agreement between HB Healthcare and plaintiff, signed and dated by plaintiff on 6/15/23. (See Apolinar Decl. at Ex. A.) The Sea Cliff SNF Agreement covers “any action for injury or death arising from negligence, intentional tort and/or statutory causes of action,” which includes all of plaintiff’s claims in this case. (See <i>id.</i> at Ex. A, art. 2; see also FAC, in passim.) Sandpiper has also met its first-step burden by producing a copy of the Sea Cliff RCFE Agreement between Sandpiper and plaintiff, signed and dated by plaintiff on 8/1/23. (See Clark Decl. at Ex. B.) The Sea Cliff RCFE Agreement covers “any action other than a claim for medical malpractice brought by or on behalf of the Resident and in any way relating to the Resident’s stay at the Facility,” including, inter alia, “claims pertaining to ... alleged violations of the [Elder Abuse Act]....” (Clark Decl. at Ex. B, art. 2.) This encompasses plaintiff’s claims in this action, as all of plaintiff’s claims arise from the defendants’ neglect/abuse and failure to provide adequate care/treatment as a care custodian. (See <i>Holland v. Silverscreen Healthcare, Inc.</i> (2025) 18 Cal.5th 364, 380-381 [“a failure of staff to attend to, monitor, or assist a resident in obtaining appropriate medical care generally falls on the custodial side of the line because such omissions involve ‘not ... the <i>undertaking</i> of medical services, but ... the failure to <i>provide</i> medical care’ ”; “allegations that a skilled nursing

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		facility failed to provide 'nutrition, hydration, and medication' and left the patient "in his bed, unattended and unassisted, for excessively long periods," whether due to inadequate staffing or otherwise, "causing [injury] from starvation, dehydration, and sepsis state[s] a claim of custodial neglect, rather than professional negligence"; <i>Hearden v. Windsor Redding Care Center, LLC</i> (2024) 103 Cal.App.5th 1010, 1018-1019 ["Elder neglect does not refer to substandard performance of medical services but rather the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations"]; see also FAC ¶¶ 3-4, 19-49, 51-55.) This shifts the burden to plaintiff to present evidence of a factual dispute as to the existence of the arbitration agreements. (<i>Garcia, supra</i>, 102 Cal.App.5th at pp. 51-52.) Plaintiff does not deny signing the subject agreements and has not submitted any evidence disputing their authenticity; he admits he signed them. (See Cacak Decl. ¶¶ 3, 5-6.) As such, the three-step burden shifting analysis stops here, and defendants have met their burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Ramirez, supra</i>, 102 Cal.App.5th at p. 837.) <u>Defense to enforcement, unconscionability.</u> Plaintiff has demonstrated a defense to enforcement based on unconscionability. (See <i>Engalla, supra</i>, 15 Cal.4th at p. 972 [burden]; <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 125 (<i>OTO</i>) [unconscionability]; <i>Sanchez v. Superior Court</i> (2025) 108 Cal.App.5th 615, 625 (<i>Sanchez</i>) [unconscionability, procedural and substantive].) <u>Procedural unconscionability.</u> Plaintiff has demonstrated that both arbitration agreements are procedurally unconscionable because defendants presented the agreements to him as a part of a stack of admission documents he was led to believe he needed to sign to stay at each respective facility, and further misrepresented the content/legal ramifications of the agreements. (See Cacak Decl. ¶¶ 3-6.) The arbitration agreements are also procedurally unconscionable in that they fail to identify the rules that may potentially govern the arbitration in two respects. First, the agreements are confusingly drafted as to whether the FAA and/or CAA may apply. Both agreements tend to suggest the FAA may apply, without actually providing that it does (see Apolinar Decl. at Ex. A, art. 3; Clark Decl. at Ex. B, art. 3),

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		and then state that the discovery procedures of the CAA shall apply, but then cite to the entirety of the CAA and/or California law, suggesting that the CAA may govern instead. (Apolinar Decl. at Ex. A, arts. 1 [“any dispute as to medical malpractice ... will be determined by submission to arbitration as provided by California law”], 7 [“Code of Civil Procedure Section 1280 et seq.”]; Clark Decl. at Ex. B, art. 7 [“Code of Civil Procedure Section 1280 et seq.”].) Just as defendants have mistakenly moved to compel pursuant to the FAA without showing it applies (see Mtn. P&As at p. 3), a resident cannot reasonably be expected to predict or determine whether the FAA or CAA (or certain select portions thereof) will govern the arbitration agreement and/or arbitration proceeding from these terms. This creates uncertainty and operates as a surprise as to the terms of arbitration and the conditions under which arbitration may be compelled. (See <i>Lane v. Francis Capital Management LLC</i> (2014) 224 Cal.App.4th 676, 690 [the failure to attach incorporated arbitration rules is not “by itself” sufficient to sustain a finding of procedural unconscionability, but it “could be a factor supporting a finding of procedural unconscionability where the failure would result in surprise to the party opposing arbitration”]; accord, <i>Dougherty v. Roseville Heritage Partners</i> (2020) 47 Cal.App.5th 93, 204.) Second, the agreements also do not identify a specific arbitral forum or specific provider’s rules. By failing to specify any arbitral forum at all, plaintiff would have had no way of determining the applicable arbitral fees and costs, leaving this crucial term a surprise. (See <i>Sanchez, supra</i>, 108 Cal.App.5th at pp. 627-628; see also Apolinar Decl. at Ex. A, art. 7 [each party to bear its own expenses incurred during the arbitration process]; Clark Decl. at Ex. B, art. 7 [same].) All in all, the foregoing establishes at least a moderate degree of procedural unconscionability, and this is so regardless of the fact that the agreements may indicate that they are optional and include an opt-out provision, particularly given the manner in which the agreements were presented to plaintiff. (See Cacak Decl. ¶¶ 3-6.) “Even where an arbitration provision allows a party to opt out, there may be procedural unconscionability if there is not ‘an authentic informed choice’ to make that decision.” (<i>Haydon v. Elegance at Dublin</i> (2023) 97 Cal.App.5th 1280, 1288.) <u>Substantive unconscionability.</u> Both arbitration agreements also have a high degree of substantive unconscionability. First, they provide that by executing the agreement, the resident is

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		“waiv[ing] his/her right to bring a lawsuit against the Facility for violation of the Resident Bill of Rights, contained in Title 22 of the California Code of Regulations Section 72527.” (Apolinar Decl. at Ex. A, art. 3; Clark Decl. at Ex. B, art. 3.) The Resident’s Bill of Rights prohibits an arbitration agreement by a skilled nursing facility or other residential care facility from requiring a resident to waive his ability to sue in court for a violation of its provisions, and renders such a clause void as a matter of public policy. (See Health & Saf. Code, §§ 1430, subd. (b)(1)(C), 1599.81, subd. (d); <i>Theresa D. v. MBK Senior Living LLC</i> (2021) 73 Cal.App.5th 18, 29 [Resident’s Bill of Rights prohibits admissions contract or related arbitration agreement “from requiring the resident to waive ‘benefits or rights to which he or she is entitled under [its provisions] or provided by federal or other state law or regulation’ ... including the right to a jury trial”].) Defendants attempt to avoid this outcome by contending that these anti-waiver statutes are preempted by the FAA, but this argument fails because as discussed above, nothing shows the FAA applies. State law rules that are preempted by the FAA are nevertheless good law in cases that do not involve the FAA. (<i>Villalobos v. Maersk, Inc.</i> (2025) 114 Cal.App.5th 1170, 1196-1197.) Next, both agreements also require each side to bear its own expenses incurred during the arbitration process, which effectively waives plaintiff’s right to recover the attorney fees and costs that he may be entitled to under the Elder Abuse Act. (Apolinar Decl. at Ex. A, art. 7; Clark Decl. at Ex. B, art. 7.) “Where a provision in an arbitration agreement seeks to waive such rights, ... the provision is contrary to public policy” and unenforceable. (<i>Bickel v. Sunrise Assisted Living</i> (2012) 206 Cal.App.4th 1, 12-13 [waiver in residency agreement of the plaintiff’s statutory remedies under the Elder Abuse Act unenforceable as contrary to public policy]; accord, <i>Dougherty v. Roseville Heritage Partners, supra</i>, 47 Cal.App.5th at pp. 101, 106 [“an arbitration agreement ‘may not limit statutorily imposed remedies such as ... attorney fees’”; the court “will not enforce an arbitration agreement that functions as an advance waiver of a claimant’s statutory rights”].) Finally, both agreements are one-sided and lack mutuality. HB Healthcare’s arbitration agreement (the Sea Cliff SNF Agreement) applies to any medical malpractice dispute, and “any action for injury or death arising from negligence, intentional tort and/or statutory causes of action and covers any claims for wrongful death, loss of consortium, or other claims deriving from or related to alleged medical

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		malpractice.” (Apolinar Decl. at Ex. A, arts. 1-2.) Sandpiper’s arbitration agreement (the Sea Cliff RCFE Agreement) requires arbitration of “any action other than a claim for medical malpractice brought by or on behalf of the Resident and in any way relating to the Resident’s stay at the Facility,” including, inter alia, “claims pertaining to the admission agreement and the interpretation, construction, performance, and enforcement of that agreement; the Facility itself; alleged violations of the [Elder Abuse Act] and the Unfair Competition Act [<i>sic</i>]; and claims seeking an award of punitive damages or attorney fees.” (Clark Decl. at Ex. B, art. 2.) At the same time, both agreements carve out “[c]laims relating to disputes over payments owed to the Facility or the payment of the Resident’s ‘share of cost’ required by the Medi-Cal program, if applicable....” (Apolinar Decl. at Ex. A, art. 5; Clark Decl. at Ex. B, art. 5.) This effectively requires plaintiff to arbitrate the types of claims he is most likely to bring against the facility, while allowing the facility to bring the types of claims it is most likely to bring against plaintiff in court. These provisions “[are] clearly ‘one-sided,’ benefitting only the Facility, and thus renders the agreement itself substantively unconscionable.” (<i>Lopez v. Bartlett Care Center, LLC</i> (2019) 39 Cal.App.5th 311, 322.) <u>Severability.</u> “If an arbitration agreement contains provisions that are unconscionable, courts may (1) refuse to enforce the agreement or (2) sever the offending provisions and enforce the remainder of the agreement.” (<i>Dougherty v. Roseville Heritage Partners, supra</i>, 47 Cal.App.5th at p. 101.) Given the degree of procedural unconscionability and multiple substantive unconscionable terms in each of the subject arbitration agreements, the court finds the agreements are so permeated with unconscionability that they should not be enforced. (See <i>id.</i> at p. 107.) It is clear from the language of the agreements that they were meant to impose arbitration not simply as an alternative to litigation, but as an inferior forum that works to defendants’ advantage, as well as an advanced waiver of plaintiff’s statutory rights under the Elder Abuse Act and the Resident’s Bill of Rights. (See <i>id.</i> at pp. 101, 106-107; Health & Saf. Code, §§ 1430, subd. (b)(1)(C), 1599.81, subd. (d).) The case management conference is continued to February 22, 2027 at 9:00 a.m. in Department C28. Plaintiff shall serve the First Amended Complaint on all non-served defendants within 60 days. Moving party shall give notice of this ruling.

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55.	Watman v. Providence Mission Hospital 2025-01489022	Cross-defendants Estate of Lorraine Virginia McKay and Aron McKay, administrator of the Estate of Lorraine Virginia McKay's motion for determination of good faith settlement is DENIED without prejudice. C.C.P. 877.6; <i>Tech-Bilt, Inc. v. Woodward-Clyde & Associates</i> (1985) 38 Cal. 3d 488. In determining whether a settlement is in good faith, the court considers: ... a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. [Citation.] Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. "[A] defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." [Citation.] (<i>Tech-Bilt v. Woodward-Clyde, supra</i> at 499 [internal citations omitted].) "The party asserting the lack of good faith, who has the burden of proof on that issue [citation] should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute." (<i>Id.</i> at 499-500.) Based on the court's analysis, the settling cross-defendants have failed to demonstrate that the settlement is in good faith when considering (1) the financial condition of the estate; and (2) the lack of competent evidence addressing the proportionate liability among the parties. (This second issue appears to be a function of the early stage of the litigation.) If the proportional liability among the parties becomes clearer, and the financial conditions of the settlement or the estate change, the settling parties may again apply for determination of good faith settlement. Flashparking's objections to the declaration of Richard K. Kim are SUSTAINED as to 1 and 2 and OVERRULED as to the

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		remainder. The objections to the declaration of Aron McKay and remaining objections are OVERRULED. Moving cross-defendants shall give notice of this ruling.
56.	DistinctImage International, LLC v. Renew Spinal Care, Inc. 2018-00986980	Plaintiff DistinctImage International, LLC's motion for entry of judgment pursuant to Code of Civil Procedure section 664.6 is DENIED. Plaintiff seeks the entry of judgment pursuant to its settlement agreement with defendants Renew Spinal Care, Inc., Joe Samuel Bailey, and GS Hospitality L.L.C. executed by the parties on 6/2/24. (See Kent Decl. ¶¶ 1, 5-8, Ex. 1 [settlement agreement]; see also Mtn. P&As at pp. 9-10.) The settlement agreement, however, requires the entry of a stipulated judgment containing an unenforceable penalty. (See Kent Decl. at Ex. 1 [settlement agreement §§ 3.1, 7].) Specifically, the settlement agreement provides: "All Claims held by [plaintiff] as alleged in the Complaint herein shall be fully satisfied upon payment of the sum of [\$1,450,000] (the 'Lump Sum Payment') by 5:00 p.m. on December 1, 2024 (the 'Lump Sum Payment Deadline')." (Kent Decl. at Ex. 1 [settlement agreement § 3.1].) The settlement agreement then provides plaintiff with certain "rights" if defendants fail to timely make the Lump Sum Payment, including the right to an immediate \$200,000 penalty: "If the Lump Sum Payment is not made in full by the Lump Sum Deadline, then commencing December 1, 2024, Plaintiff has the unconditional right to submit an Ex Parte Application to the Court requesting Judgment against Defendants, and each of them in the amount of \$1,650,000.00." (Kent Decl. at Ex. 1 [settlement agreement § 7].) It further provides: "Defendants knowingly and intentionally waive and release any claim, contention, or right to argue or contend that the result amount of any judgment entered pursuant to this SETTLEMENT AGREEMENT is unenforceable as a penalty or improper liquidated damages [sic] under Civil Code, §1671. The unpaid principal balance shall bear interest at the rate of ten percent per annum simple interest. [Plaintiff] shall be entitled to recover all of his costs in enforcing this SETTLEMENT AGREEMENT including reasonable attorney's fees." (<i>Ibid.</i>) The additional \$200,000 in principal constitutes an unenforceable penalty under Civil Code section 1671, subdivision (b), as it bears no reasonable relationship to the

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		range of actual damages that the parties could have anticipated would flow from a breach. (See <i>Ridgley v. Topa Thrift & Loan Assn.</i> (1998) 17 Cal.4th 970, 977; <i>Lakeshore Investment LLC v. Now Solutions, Inc.</i> (Cal. Ct. App., Aug. 24, 2026, No. B343435) _ Cal.App.5th _ (<i>Lakeshore Investment LLC</i>) [2026 WL 2474230 at *2].) “ ‘The amount set as liquidated damages “must represent the result of a reasonable endeavor by the parties to estimate a fair average compensation for any loss that may be sustained.” [Citation.] In the absence of such relationship, a contractual clause purporting to predetermine damages “must be construed as a penalty.” ’ (<i>Ridgley v. Topa Thrift & Loan Assn.</i> [, at p.] 977....)” (<i>Lakeshore Investment LLC</i>, _ Cal.App.5th at p. _ [2026 WL 2474230 at *2].) Here, the settlement agreement provides that in the event defendants fail to timely make the \$1.45 “Lump Sum Payment,” plaintiff shall be entitled a stipulated judgment of \$1.65 million representing a \$200,000 increase in principal, plus interest at the rate of 10% per annum on this increased principal sum and attorney fees and costs. (<i>Id.</i> at Ex. 1 [settlement agreement § 7].) A \$200,000 increase in the principal amount due—particularly where the parties have already agreed that \$1.45 million “fully satisfie[s]” all of plaintiff’s claims in the complaint (Kent Decl. at Ex. 1 [settlement agreement § 3.1]), and have provided for the recovery of interest and attorney fees and costs in the event of a late payment—does not reflect a reasonable range of damages flowing from the failure to timely pay the initial settlement sum. (See <i>Red & White Distribution, LLC v. Osteroid Enterprises, LLC</i> (2019) 38 Cal.App.5th 582, 589 [“ ‘Damages for the withholding of money are easily determinable—i.e., interest at prevailing rates....’ ”]; <i>Ridgley v. Topa Thrift & Loan Assn.</i>, <i>supra</i>, 17 Cal.4th at p. 977 [“The amount set as liquidated damages ‘must represent the result of a reasonable endeavor by the parties to estimate a fair average compensation for any loss that may be sustained.’ ”]; see also Bailey Decl. ¶¶ 20, 21, 23 [defendants were unrepresented at the time they executed the settlement agreement; there was no explanation of the additional \$200,000 required in section 7 of the agreement].) Where, as here, “a stipulated judgment amount is not reasonably related to damages arising solely from the failure to pay the stipulated judgment, it constitutes an unenforceable penalty.” (<i>Lakeshore Investment LLC</i>, <i>supra</i>, _ Cal.App.5th at p. _ [2026 WL 2474230 at *2].)

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		This is so regardless of the language in the settlement agreement purporting to waive defendants' right to challenge the stipulated judgment as an unenforceable penalty. (See Kent Decl. at Ex. 1 [settlement agreement § 7].) An unenforceable penalty is void as against public policy (<i>Honchariw v. FJM Private Mortgage Fund, LLC</i> (2022) 83 Cal.App.5th 893, 900, 903), and "the public policy expressed in Civil Code section[s]... 1671 may not be circumvented by words used in a contract...." [Citation.] (<i>Purcell v. Schweitzer</i> (2014) 224 Cal.App.4th 969, 975; see <i>WRI Opportunity Loans II, LLC v. Cooper</i> (2007) 154 Cal.App.4th 525, 542 [illegality cannot be waived by stipulation in the contract]; see also Civ. Code, §§ 1667, 1668.) "[S]ection 664.6 does not allow a court to endorse or enforce a provision in a settlement agreement or stipulation which is illegal, contrary to public policy, or unjust," even if the parties agree to it. (<i>Timney v. Lin</i> (2003) 106 Cal.App.4th 1121, 1127; <i>Graylee v. Castro</i> (2020) 52 Cal.App.5th 1107, 1113-1114.) The "court cannot enter a judgment that contains an unenforceable liquidated damages clause" (<i>Graylee v. Castro, supra</i>, 52 Cal.App.5th at p. 1113) or omit/modify the terms of the settlement agreement so that it provides for a different judgment. (<i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 792 [under section 664.6, a party is "entitled to judgment 'pursuant to the terms of the settlement'... and nothing more"; "[t]he trial court is under a duty to render a judgment that is in exact conformity with an agreement or stipulation of the parties' " and cannot modify an express term of the settlement agreement or make a new stipulation for the parties]; <i>Leeman v. Adams Extract & Spice, LLC</i> (2015) 236 Cal.App.4th 1367, 1375 [although the court "may reject a stipulation that is contrary to public policy" and "refuse to issue the requested consent judgment," the court cannot "add to or modify an express term of the settlement"].) <u>Request for judicial notice.</u> Defendants' request for judicial notice is granted as to exhibits 3-5 (see Evid. Code, § 452, subds. (c), (d)), and otherwise DENIED. (See <i>Jaramillo v. County of Orange</i> (2011) 200 Cal.App.4th 811, 817 [judicial notice of federal opinions is unnecessary, citation to the material is sufficient]; <i>Bolanos v. Superior Court</i> (2008) 169 Cal.App.4th 744, 761 [trial court rulings have no precedential value]; <i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal.4th 739, 748, fn. 6 [denying request where judicial notice is not necessary, helpful, or relevant].)

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		The parties shall be prepared to discuss a trial date. Plaintiff shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	The court has read and considered the additional briefing regarding issues to be tried in Phase 2. The parties are ordered to submit an additional joint filing that (1) identifies each cause of action that remains from the Records Case and the Election Case; (2) for each remaining cause of action, the parties shall identify the elements of each cause of action by reference to the CACI model instructions; and (3) the parties shall analyze which elements (if any) have been established as a result of the court's ruling concerning the Phase 1 bench trial. The additional joint briefing shall be submitted no later than September 24, 2026. The court sets a status conference regarding the Phase 2 trial for October 5, 2026 at 2:00 p.m. in Department C28. Defendants shall give notice of this ruling.
58.	PeproMene Bio, Inc. v. Seo 2024-01423532	Defendant Youngjin Seo's Motion to Set Aside and Vacate the Default is DENIED. Pursuant to Code of Civil Procedure §§ 473.5 and 473(b), Defendant seeks to set aside the default that was entered on December 8, 2025. CCP § 473.5 Code of Civil Procedure section 473.5 provides for setting aside a default or default judgment "when service of the summons and complaint has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action." Code Civ. Proc. § 473.5(a). This section is designed to provide relief where there has been <i>proper</i> service of the summons, but the defendant nevertheless did not find out about the action in time to defend. Typically, these are cases in which service was made by publication. (<i>See Trackman v. Kenney</i> (2010) 187 Cal.App.4th 175, 180.) "A party moving under section 473.5 must submit an affidavit, based on personal knowledge rather than hearsay or conclusory assertion, showing that the lack of actual notice

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		was not the product of the party's own inexcusable neglect or avoidance of service." (<i>Anastos v. Kuo Chen Lee</i> (2004) 118 Cal.App.4th 1314, 1322–1323.) Defendant states he did not receive actual notice of the Summons and Complaint in this action, nor was he properly served. (Seo Decl., ¶ 3.) While perhaps Defendant did not actually see the Summons and Complaint, he had notice of this lawsuit and has actively participated in it, including submitting declarations. Defendant was represented by counsel who filed an opposition to the TRO (ROA 24) and motion for preliminary injunction (ROA 46) on his behalf, and filed an anti-SLAPP motion (ROA 74). Therefore, Defendant is not entitled to relief from default under Section 473.5. CCP § 473(b) Section 473(b) provides for discretionary relief from defaults/default judgments (among other orders/proceedings) entered against a party through his "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Relief is mandatory if is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect. (Ibid.) To obtain this relief, the moving party must show specific facts demonstrating that one of these conditions have been met, and that he has diligently brought this motion after discovering the default. (See <i>Hopkins & Carley v. Gens</i> (2011) 200 Cal.App.4th 1401, 1410.) Section 473(b) further provides that "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted," and that the application must be filed no later than six months after the subject order/judgment was taken. (Code Civ. Proc., § 473, subd. (b).) While Section 473 is to be liberally construed, "the moving party must show 'mistake, inadvertence, surprise or excusable neglect' by a preponderance of the evidence." (<i>Luz v. Lopes</i> (1960) 55 Cal.2d 54, 62.) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. (<i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 134.)

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		“When evaluating a motion to set aside a default judgment on equitable grounds, the ‘court must weigh the reasonableness of the conduct of the moving party in light of the extent of the prejudice to the responding party.’ ” (Id. at 139 [citation omitted].) “When a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys [citations]. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney [citation].’ [Citations.] In other words, when a litigant accepts the risks of proceeding without counsel, he or she is stuck with the outcome, and has no greater opportunity to cast off an unfavorable judgment than he or she would if represented by counsel.” (<i>Burnete v. La Casa Dana Apartments</i> (2007) 148 Cal.App.4th 1262, 1267.) Defendant states he is a native Korean speaker with limited proficiency in English and therefore did not understand or appreciate the legal significance of not being represented by counsel. Despite this assertion, Defendant has previously submitted declarations in this case in English, and was able to file the motion for relief from default as well as a reply in English, indicating an understanding of the English written language. Defendant also claims he had medical incapacity throughout 2025 due to severe major depressive disorder and anxiety, as well as stomach cancer. Defendant also claims he was physically and mentally incapable of protecting his legal rights. Defendant submits a letter from Dr. Thomas Lin dated August 9, 2025, indicating Defendant suffers from major depressive disorder and needs to avoid participation in a legal deposition. Dr. Lin makes no mention that Defendant was unable to appreciate or engage in life events, such as the ongoing litigation, or that he was on heavy, sedating psychiatric medication as Defendant claims. There is also no documentation from December 2025 when the default was entered, to the present, which substantiates his claimed disorder. Moreover, the default was entered on December 28, 2025, and Defendant did not file this motion seeking to set aside the default until June 16, 2026. He does not state he was incapacitated in 2026 and offers no reason why he waited almost six months to seek relief.

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		Defendant has also not attached an answer to the Complaint with his motion as required by Section 473(b). Based on the foregoing, Defendant is not entitled to relief under Section 473(b). Accordingly, the motion is DENIED. The court continues the status conference to October 30, 2026 at 9:00 a.m. in Department C28. Prior to that date, the court will review the proposed default judgment packet. If it comports with the necessary requirements, the court will sign the default judgment. If there are omissions, or other shortcomings, the court will issue a minute order prior to the continued date that describes the necessary next steps. Plaintiff shall give notice of this ruling.
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63.	Quick Bridge Funding LLC v. CJC ATL Transport LLC 2024-01429048	Plaintiff Quick Bridge Funding, LLC's unopposed motion for summary judgment against defendant Curtis Grace Jr. as to the first and only cause of action against Defendant for breach of contract is GRANTED. A plaintiff may move for summary judgment of a cause of action under CCP § 437c(f)(1), when the plaintiff asserts that there is "no defense" to that cause of action. The plaintiff's burden of proof on such a motion is defined by CCP § 437c(p)(1), i.e., the plaintiff must prove each element of the cause of action that entitles the plaintiff to judgment on that cause of action. <i>Paramount Petroleum Corp. v Superior Court</i> (2014) 227 CA4th 226, 241, 173 CR3d 519. Plaintiff seeks adjudication that Grace breached the settlement agreement between the parties and seeks damages thereon. A settlement agreement is a contract, and its validity is judged by the same legal principles applicable to contracts generally. <i>Stewart v. Preston Pipeline Inc.</i> (2005) 134 Cal.App.4th 1565. The elements of a cause of action for breach of contract are: 1. the contract, 2. the plaintiff's performance or excuse for nonperformance,

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		3. the defendant's breach, and 4. damage to the plaintiff <i>Bank of America, N.A. v. Roberts</i> (2013) 217 Cal.App.4th 1386. The declaration of Sandra Otero, COO of plaintiff Quick Bridge offers evidence that supports a finding plaintiff has met its initial burden of proof on summary judgment. She testifies: On or about June 14, 2023, CURTIS GRACE JR ("Defendant") electronically executed and delivered to Quick Bridge a Settlement Agreement (the "Settlement Agreement") via AdobeSign, whereby Defendant agreed to pay \$50,000.00 to Quick Bridge in exchange for a release of claims against him regarding the failure to repay sums due under a loan agreement. On June 14, 2023, I electronically executed the Settlement Agreement on behalf of Quick Bridge via AdobeSign. Defendant was to make monthly installment payments to Quick Bridge starting July 14, 2023 and continuing on the 14th of each month until the \$50,000.00 was paid in full. Attached hereto as Exhibit "1" is a true and correct copy of the Settlement Agreement. Otero declaration paragraph 4, ROA #73. Otero further testifies Grace defaulted on the agreement by failing to make payment when due, (paragraph 6, Otero dec.) plaintiff exercised its option to demand the remaining balance of the agreed payment (paragraph 7) and there is a remaining balance due of \$44,750.00. (Otero dec., paragraph 9.) Because plaintiff has met its initial burden justifying summary judgment, the burden now shifts to Grace to provide evidence of a disputed fact with regard to breach of the settlement agreement. Because Grace has not filed an opposition to this motion, he has not met his now shifted burden and summary judgment is appropriate. Plaintiff to prepare the formal order within 10 days. Plaintiff shall be prepared to address whether the defendant's name is Curtis Grace (See Exhibit 1 to Otero Decl.) or Curtis Grace Jr. (See Amendment to Compl, ROA 14). The court sets a status conference regarding the preparation of the formal order for October 30, 2026 at 9:00 a.m. Plaintiff shall give notice of this ruling.

[illegible]